ORDINANCE OF THE TOWN OF NORTH PROVIDENCE AMENDING ARTICLE VI, SECTIONS 605, 606 & 608 OF THE ZONING CODE

ORDINANCE 19-003Z

WHEREAS, the Town Council of the Town of North Providence desires to amend, by Ordinance, its existing Zoning Ordinance and, more specifically, Article VI, Sections 605, 606 & 608; and

NOW, THEREFORE, BE IT HEREBY ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLLOWS:

SECTION ONE: That the existing Zoning Ordinance of the Town of North Providence, to wit, Article VI, Sections 605, 606 & 608 be amended to read as follows:

605. Signs Prohibited in all Zones

The following signs shall be prohibited in all zones in the Town:

A. Hazardous Signs - Signs determined by the Police Department to constitute a traffic or other safety hazard by reason of size, location, or type of illumination.

B. Flashing Signs - A sign which contains an intermittent or sequential flashing light source used primarily to attract attention.

C. Billboards - Freestanding and roof mounted billboards, except as allowable under Section 608 C of the North Providence Zoning Code, as amended,

D. Signs on Utility Poles - Utility poles owned by any governmental agency or utility company shall not be used for any type of sign or message other than those specifically erected by such governmental agency or utility company.

606. Sign Types

The following sign types, if permanently mounted (not portable), are permitted in the Town in accordance with the requirements of this Article:

A. Canopy Sign - A sign painted on or attached to a hood, awning or roof-like canopy. Individual letter, words or symbols may be affixed or applied to any surface, provided that area of the sign does not exceed the maximum area allowed in Section 608 of this Article. A canopy sign is not considered a projecting sign. In no event shall such sign or part thereof be erected closer than 2 feet to the curb line.

B. Directional Sign - A sign identifying on-premise traffic, parking or other functional activity bearing no commercial advertising. Such signs are permitted in all zones except R Zones, and

shall be limited to four (4) square feet in area per sign.

C. Freestanding Sign - A sign that is attached to, erected on, or supported by some structure (such as a pole, mast, frame, or other structure, but not any kind of antenna) that is not itself an integral part of or attached to a building. A sign that stands without supporting elements, such as "sandwich sign", is also a freestanding sign. All permanently installed freestanding signs shall be protected from vehicular circulation and parking areas.

D. Projecting Signs - A sign that is perpendicular to the plane of the building to which it is affixed, or which projects more than fifteen (15) inches beyond said exterior wall. In no event shall such sign or part thereof be erected closer than 2 feet to the curb line.

E. Roof Sign - A sign that projects more than two (2) feet above the roof, parapet or ridge line of the building; or mounted upon any roof, parapet or ridge line of a building.

F. Wall Sign - A sign that is affixed to or painted on the face of any exterior wall or door of a building or fence; is parallel or approximately parallel to the plane of the building to which it is affixed; and does not project more than fifteen (15) inches beyond said exterior wall, nor project more than two (2) feet above the roof, parapet or ridge line of the building, whichever is higher.

G. Window Sign - A sign that is attached to the inside of any window or situated within a building, so that the sign is visible from the public right of way.

H. Billboards.- All off-site signs or off-site advertising, and any sign that is used to attract attention to an object, person, product, institution, organization, business, service, event or location that is not located on the premises upon which the sign is located. This definition does not include governmental traffic, directional or regulatory signs or notices of the federal, state, county or City government or their public agencies.

608. Size of Permitted Signs by Zone

A. R Zones - Wall or window sign to identify each permitted home occupation and one sign to display the name of a permitted nonresidential use. Such signs may be externally illuminated. The total area of all such signs shall not exceed six (6) square feet on any lot.

B. C Zones - (i) Canopy, freestanding, projecting, wall or window sign to identify on-site premises of permitted uses. The maximum total area of all signs on any premises shall not exceed one and a half (1.5) square feet per one (1) foot of building frontage. Window signs shall not be included in this calculation. Such signs may be externally or internally illuminated. The maximum area of any individual sign shall be limited to one half of the total allowable square feet of sign space. Only one freestanding sign is permitted per street frontage.

C. CG & IS Zones- Billboards-Legal Non-Conforming Use Only:

Legal Non-Conforming Use Billboards may be relocated within CG& IS Zones subject to Planning Board site plan approval.
The relocated Billboards may be of the following type and size:

Bulletin Type: Maximum sign area is 672 square feet and maximum height is 50 feet. Cutouts and extensions are permitted in accordance with Department of Transportation Rules and Regulations for Outdoor Advertising. Any new billboard sign constructed shall be in conformance with the State of Rhode Island Department of Transportation Rules and Regulations for Outdoor Advertising. All billboard signs erected must conform to applicable Rhode Island State Building Code regulations and Town of North Providence ordinances.

Poster Type: No billboard, poster type, shall be constructed or erected after the date of the amendment, except to the extent that such sign replaces or relocates an existing nonconforming sign in the Town. The maximum area shall be 300 square feet, and the maximum height shall be 50 feet. The location is to be 500 feet from any other state permitted billboard, poster type. All signs erected must conform to applicable Rhode Island State Building Code and Department of Transportation regulations.

D. M Zones - Canopy, freestanding, projecting, roof, wall or window sign to identify on-site premises of permitted uses. The maximum total area of all signs on any premises shall not exceed four (4) sq. ft. per one (1) foot of building frontage. Window signs shall not be included in the above calculation. Such signs may be externally or internally illuminated. The maximum area of any individual sign shall be limited to one half of the total allowable square feet of sign space. Only one freestanding sign is permitted per street frontage.

SECTION TWO: The provisions of this Ordinance are severable and, in the event that any provision of this Ordinance is determined to be invalid, for any reason, the remaining provisions shall remain in full force and effect.

SECTION THREE: This Ordinance shall take effect upon adoption and any Ordinance inconsistent herewith is hereby repealed.
APPROVED AS TO FORM AND LEGALITY:

Town Solicitor

Adopted: March 5, 2019

Council President

Approved: March 11, 2019

Mayor

Town Clerk